

Approved as to
form only:
D. White
Date: 8/10/2015

CHARTER ORDINANCE NO. _____

ENTITLED: "A CHARTER ORDINANCE ESTABLISHING THE POSITION OF CITY ADMINISTRATOR AND EXEMPTING THE CITY OF CHEYENNE, AS A FIRST CLASS CITY, FROM CERTAIN SECTIONS OF THE WYOMING STATUTES."

WHEREAS, the City of Cheyenne has been established and is currently operating as a first class city pursuant to the Constitution and Laws of the State of Wyoming; and

WHEREAS, Article 13, Section 1, of the Wyoming Constitution provides in part that a Wyoming city or town may elect that the whole or any part of any statute, other than statutes uniformly applicable to all cities and towns and statutes prescribing limits of indebtedness, shall not apply to such city or town; and

WHEREAS, pursuant to Article 13, Section 1, of the Wyoming Constitution, the Governing Body desires to provide for the position of City Administrator and to exempt the City of Cheyenne from certain sections of the Wyoming Statutes that relate only to first class cities and that would restrict the powers delegated to and duties imposed upon the City Administrator as envisioned in this Charter Ordinance; and

WHEREAS, Article 13, Section 1.(c) of the Wyoming Constitution provides that the Governing Body may submit, without petition, any charter ordinance to referendum election by qualified municipal electors under procedures to be set forth in a separate ordinance for a special referendum election, and the Governing Body desires to submit to qualified municipal electors a ballot question regarding whether this Charter Ordinance shall take effect.

NOW THEREFORE BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

SECTION 1. The City of Cheyenne shall not be governed by the provisions of W.S. §§ 15-3-204, 15-3-207, 15-3-208, and 15-3-209 through 15-3-212.

SECTION 2. The following provisions shall apply to and govern the City of Cheyenne:

A. The Governing Body shall employ a City Administrator and City Attorney, and fix their salaries. The City Administrator shall receive no other or additional salary for the performance of any of the duties required as City Administrator. The City Administrator and City Attorney are employees of and serve at the pleasure of the Governing Body. The salaries of the City Administrator and City Attorney may be changed from year to year. The City Administrator and City Attorney may be discharged and their employment terminated at any time by a majority vote of the qualified members of the Governing Body.

B. If the City Administrator position becomes vacant for any reason, the Governing Body shall immediately proceed to employ another person. If there is a delay in appointing a new City Administrator, the Governing Body shall designate and fix the salary of an acting City Administrator. In the event the Mayor is designated as acting City Administrator, the Mayor shall receive no compensation other than that provided for the office of Mayor. The acting City Administrator shall be vested with authority and charged with the duties and responsibilities of the City Administrator until a City Administrator is hired and qualified.

C. The City Administrator shall appoint, and the Governing Body shall confirm, two (2) or more municipal judges to hear and determine all cases arising under the ordinances of the City of Cheyenne that are within the jurisdiction of the Municipal Court. The municipal judges shall serve at the pleasure of the City Administrator.

D. Except for the City Administrator and City Attorney, and except as provided in Sub-Section G., of this Section, all employees shall be employed by the City Administrator, selected on merit and serve at the pleasure of the City Administrator, subject to applicable personnel rules and regulations and applicable law. The City Administrator shall fix employee salaries, by and with the consent of the Governing Body, consistent with the City's ability to pay. Nothing herein shall be construed as affecting or superseding the provisions of W.S. §§ 15-5-101 through 15-5-422 or W.S. §§ 27-10-101 through 27-10-109.

E. Subject to confirmation by the Governing Body, the Mayor shall, in the manner provided by state law, appoint the members of the City of Cheyenne Board of Public Utilities, the Planning Commission, the Board of Adjustment, the City Police Department Civil Service Commission, and the City Fire Department Civil Service Commission. Subject to confirmation by the Governing Body, if required by ordinances amended pursuant to Section 3 of this Charter Ordinance, the City Administrator shall appoint the members of all other City boards, committees, and commissions that are not otherwise subject to specific appointment procedures provided by state law. Subject to confirmation by the Governing Body, if required by ordinances amended pursuant to Section 3 of this Charter Ordinance, by-laws, or other organizational documents, the City Administrator shall appoint the members of joint powers boards and other inter-governmental boards, commissions, and committees.

F. In addition to the specific duties set forth in this Charter Ordinance, the City Administrator shall see that all laws and ordinances are observed and enforced. The City Administrator shall prepare and submit to the Governing Body reports required by it, and others as deemed advisable. The City Administrator shall keep the Governing Body fully advised of the City's financial condition and its future needs. The City Administrator shall prepare a proposed budget annually, submit the proposed budget to the Governing Body and be responsible for its administration after its approval. The City Administrator shall perform all duties imposed by the ordinances of the City that are not inconsistent with state law. The City Administrator is the purchasing agent for the city.

G. The City Administrator shall appoint, subject to confirmation by the Governing Body, the City Clerk, City Engineer, City Treasurer, Parks and Recreation Director, Planning Services Director, Development Director, Public Works Director, Police Chief, and Fire Chief. Subject to applicable law and personnel rules and regulations, the City Administrator may hire and remove subordinates, clerks, assistants, employees and laborers and fix the compensation of those appointed within the limits fixed by the Governing Body and the law. Except as otherwise provided, the City Administrator shall prescribe the powers and duties of all employees, and may require any employee to perform duties in two (2) or more departments. The City Administrator shall file with the Human Resources Director and City Treasurer a list of the names of all employees, together with a statement of the salary or compensation each is to receive. The City Administrator shall recommend to the Governing Body such rules and regulations as necessary for the efficient and economical conduct of the business of the City.

H. The City Treasurer shall perform those duties and functions and be subject to those restrictions and limitations specified in the "Uniform Municipal Fiscal Procedures Act", W.S. § 16-4-101, *et seq.*, and other applicable provisions of law. The City Treasurer shall post a bond pursuant to W.S. § 15-1-124.

I. The Governing Body may employ experts to perform unusual or special services upon the recommendation of the Administrator or otherwise.

SECTION 3. All ordinances or parts of ordinances in conflict herewith shall be amended pursuant to separate ordinances approved by the Governing Body in conjunction with and to become effective on the same date as the effective date of this Charter Ordinance.

SECTION 4. If any section, clause or phase shall be held unconstitutional or invalid, it shall not affect the balance of this ordinance, which shall remain in full force and effect.

SECTION 5. Pursuant to Article 13, Section 1.(c) of the Wyoming Constitution, the Governing Body of the City of Cheyenne hereby proclaims that a special referendum election on this Charter Ordinance shall be conducted on Tuesday November 10, 2015. Election procedures shall be set forth in a separate ordinance to be approved by the Governing Body in compliance with Article 13, Section 1.(c) of the Wyoming Constitution, and any applicable special municipal election laws. After approval of this Charter Ordinance by the Governing Body, the City Clerk shall provide for the publication of this Charter Ordinance in a newspaper of general circulation in the City of Cheyenne once each week for two (2) consecutive weeks. The Mayor and City Clerk are herewith directed to comply with the provisions of state law relating to a special municipal referendum election and are authorized to request and receive the assistance of the County Clerk of Laramie County, Wyoming, in preparing, proclaiming, and conducting said special municipal referendum election.

SECTION 6. This Charter Ordinance shall be effective upon approval by the Governing Body, upon publication of the same in the manner provided by law and upon the approval of this Charter Ordinance by a majority of the qualified municipal electors voting thereon at the special referendum election to be conducted on Tuesday, November 10, 2015, provided however, that this Charter Ordinance shall become effective not sooner than January 3, 2017.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Richard L. Kaysen, Mayor

(SEAL)

Attest:

Carol Intlekofer, City Clerk

Publish: Wyoming Tribune Eagle